

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Qazi Faez Isa, CJ
Justice Irfan Saadat Khan
Justice Naeem Akhtar Afghan

Suo Moto Case No. 4 of 2021

AND

Suo Moto Case No. 5 of 2021

AND

Constitution Petition No. 27 of 2022

Syed Ibn-e-Hussain and others. ... *Petitioners*

Versus

*Federation of Pakistan through its Secretary M/o
Information, Islamabad and others.* ... *Respondents*

AND

Constitution Petition No. 4 of 2024

*Press Association of the Supreme Court through its
President Mian Aqeel Afzal, Islamabad and another.* ... *Petitioners*

Versus

*Federation of Pakistan through its Secretary M/o
Interior, Islamabad and another.* ... *Respondents*

For the Petitioner: Mr. Salahuddin Ahmed, ASC.
(*In Const.P.4/24*) a/w Mr. Aqeel Afzal and Imran Wasim.

For Petitioners/Applicants: Mr. Matiullah Jan.
(*In SMCs. 4 & 5/21*) Mr. Abdul Qayyum Siddiqui.
Mr. Absar Alam.
Mr. Jahangir Khan Jadoon, ASC.
(*on behalf of Mr. Amir Mir*)

For the Petitioner: Nemo.
(*In Const.P.27/22*)

On Court's Notice:
For the Federation: Mr. Mansoor Usman Awan,
Attorney-General for Pakistan.
Malik Javed Iqbal,
Additional Attorney-General for Pakistan.

For Islamabad Police: Mr. Ayyaz Shaukat,
Advocate-General, Islamabad.
Dr. Nasir Akbar Khan, IGP.
Mr. Masood Bangash, SSP (inv.), Islamabad.
Mr. Hasan Raza, DSP (Legal).

For Govt. of Punjab:	Mr. Waseem Mumtaz Malik, Additional Advocate-General, Punjab.
For Govt. of Sindh:	Mr. Hassan Akbar, Advocate-General, Sindh.
For Govt. of Balochistan:	Mr. Ayaz Swati, Additional Advocate-General, Balochistan.
For Govt. of KP:	Mr. Zahid Yousaf, AOR for State.
For PEMRA:	Syed Nayyar Abbas Rizvi, ASC. Mr. Haris Azmat, ASC.
For FIA:	Mr. Waqar-ud-Din, Addl. D.G. (Ops), FIA Cyber Crime.
For M/o Information And Broadcasting:	Mr. Abid Mehmood Ch., Law Officer.
For Pak. Bar Council:	Mr. Riazat Ali Sahar, Vice Chairman.
For SCBA:	Syed Ali Imran, Secretary.
Date of Hearing:	11.03.2024.

ORDER

Pursuant to the orders dated 29 and 30 January 2024 two reports have been submitted by Senior Superintendent of Police, Islamabad (**'SSP'**) (CMA No. 1230 of 2024) and the other by Federal Investigation Agency (**'FIA'**) (CMA No. 22 of 2023). We have read these reports and are not satisfied with them. The learned Attorney-General for Pakistan (**'AGP'**) is also not satisfied with them and assures us that comprehensive reports attending to the crimes that were committed will be submitted by or before the next date of hearing.

2. Learned Mr. Salahuddin Ahmed states that he has filed Constitution Petition No. 4 of 2024 on behalf of the Press Association of the Supreme Court (**'PASC'**) and it has been fixed with these cases as it was ordered that all such cases be fixed together. Since learned Mr. Salahuddin Ahmed represents PASC he was asked whether he would represent those journalists who are mentioned in the said two CMAs and he agreed. Therefore, the learned AGP to provide him copies of the CMAs. Some of the said journalists are present in Court and some are not and learned Mr. Salahuddin Ahmed states that he will be seeking instructions from all of them. It is stated in CMA No. 1230/2024 that Mr. Matiullah Jan was not cooperating in the investigation, therefore, we enquired from the SSP to

explain this, but instead of doing so he withdrew the allegation. Mr. Matiullah Jan states that he has certain information which, in the first instance, should be provided to the investigation officer.

3. We expect that no stone would be left unturned to unearth the perpetrators of these crimes against journalists. Intimidation of the press will not be tolerated; the freedom of the press is a valuable fundamental right enshrined in Article 19 of the Constitution and this right helps secure other fundamental rights as a responsible/vigilant press highlights infringements of fundamental rights. Let fresh reports be submitted both by the police as well as by the FIA in respect of the attacks on the said journalists. If a thorough investigation is not carried out it may imply that this is not done so as to facilitate the perpetrators of the said crimes.

4. Learned Mr. Salahuddin Ahmed has referred to notices dated 25 January 2024 issued by the FIA, under section 160 of the Code of Criminal Procedure, 1860, wherein it is stated that 'Gist of Allegation: *Explicit and malicious campaign against Hon. Judges of Supreme Court of Pakistan*'. We enquired whether any judge or the Registrar of the Supreme Court had complained and were told that no complaint was made. We next enquired whether prior to issuing such notices the concerned Judge or the Registrar was informed of the proposed action and were told that this too was not done.

5. The learned Mr. Salahuddin Ahmed has also referred to FIR No.54/2024, registered on 26 February 2024, by an Inspector of Cyber Crimes, FIA under sections 9, 10 and 24 of the Prevention of Electronic Crimes Act, 2016 ('**the Act**'), and states that even if the contents are taken to be correct then too it would not constitute these offences. The learned AGP stated that a plain reading of the FIR suggests that sections 9 and 10 of the Act are not attracted, and he will be looking into the matter.

6. That when reference to Judges of the Supreme Court is made in the notices and this is followed by registering an FIR the public will assume that action was initiated on the complaint of or on the behest of a Judge or the Registrar of the Supreme Court. However, the FIR does not mention any Judge or the judiciary but mentions '*civil servants/government officials*'. The FIR is also lacking in material particulars with regard to the alleged offences. Resultantly, a bad name is brought to the Judiciary and the people are misled into thinking that the action was initiated at its behest.

7. Learned Mr. Salahuddin Ahmed also refers to the joint investigation team ('**JIT**') constituted under section 30 of the Act, which includes members of an intelligence agency and states that section 30 does not permit their association with the investigation, however, the Prevention of Electronic Crimes Investigation Rules, 2018 permits this, therefore, the rules are *ultra vires* to section 30 of the Act and to such extent are not sustainable.

8. Issue **notice** to the respondents in Constitution Petition No. 4 of 2024. Concise statements to be filed by or before the next date of hearing. As suggested to come up on Monday, 25 March 2024.

Chief Justice

Judge

Judge

Islamabad:
11.03.2024
(M. Tauseef)